

**THE HONOURABLE SRI JUSTICE SUJOY PAUL
AND
THE HONOURABLE DR. JUSTICE G.RADHA RANI**

WRIT APPEAL No.1412 of 2024

JUDGMENT: *(per Hon'ble Sri Justice Sujoy Paul)*

Sri B.Mayur Reddy, learned Senior Counsel appears for Sri K.S.Suneel, learned counsel for the appellant and learned Government Pleader for Revenue for respondents.

2. With the consent, finally heard.
3. The challenge is mounted in this appeal to the order passed in W.P.No.13116 of 2023, whereby, the Writ Petition filed by the petitioner was dismissed. In the Writ Petition, the petitioner has prayed for following relief:-

“For all the above reasons the petitioner prays that this Hon’ble Court may please to issues a writ or order or a direction more particularly one in the nature of Writ of Mandamus declaring the order dated 26.04.2023 issued by the 2nd Respondent refusing to De-Notify the Land in Sy.No.503 to an extent of Ac-5.00 gts situated at Pudur Village Medchal Mandal MedchalMalkaigiri District from the Prohibited List U/s 22-A and not issuing N.O.C on the pretext that the original assignment file is not available in their office and refusing to receive the Sale Deed dated 09.01.2023 presented manually for Registration before the 4th Respondent/ Tahsildar as highly illegal arbitrary capricious violative of the Fundamental rights and consequently direct the Respondents to De-notify the land from the Prohibited list U/s.22A and to issue N.O.C and pass such other Order or Orders as this Hon’ble Court may deem fit and proper in the circumstances of the case.”

(emphasis supplied)

4. Learned counsel for the appellant submits that as per his case, by Patta Certificate, the land was allotted to his father on 28.06.1998, who was an Ex-Serviceman. After the demise of his father, since more than ten years period elapsed, the appellant filed an application seeking de-notification of the land from the Prohibitory List, because, as per Law, there is a prohibition to sell the said land for a period of ten years from the date of allotment. The appellant's representation/application was rejected by impugned order dated 26.04.2023. The principal reason assigned was that the original assignment file is not available and therefore, the appellant's prayer was declined by the Additional Collector, Medchal-Malkajgiri District. The appellant filed aforesaid writ petition.

5. Learned Senior Counsel for the appellant submits that the duty to keep the revenue file safely is on the shoulder of the authorities. If they have not maintained the file, the only relief the appellant could have prayed is to examine the aspect of allotment and grant order of de-notification, so that, the appellant can sell the said land.

6. The learned Single Judge has mainly given three findings. Firstly, he opined that if the appellant's case is to be accepted, the exact extent of land claimed by him under allotment Patta must be available. In absence of same, the contention of the appellant that his father was assigned land under Ex-Servicemen quota cannot be countenanced. Learned Senior Counsel for the appellant submits that it was nobody's case before the learned Single Judge that Patta Certificate (page No.32) was not a genuine document. In other words, the respondents did not take this stand in their counter that land itself was not allotted to the appellant's father. Thus, there was no occasion for the learned Single Judge to give such an observation. Furthermore, it is submitted that in paragraph No.9 of the impugned order, the learned Single Judge opined that Writ Petition is not maintainable, because, the appellant is seeking correction of entries in the revenue records after nearly two decades. By taking this Court to the prayer clause of Writ Affidavit, it is submitted that it was not the prayer of the appellant, instead, the prayer was that the said impugned order be set aside and appellant's land be removed from the Prohibitory List under Section 22 (A) by issuing N.O.C. If the petition was not maintainable, there was no occasion for the

learned Single Judge for giving any findings on merits. Lastly, it is submitted that petition is dismissed by holding that at this juncture, no order directing correction of revenue entries can be issued. It is submitted that all the aforesaid reasons are incorrect and not arising out of the prayer of the petition. Thus, interference may be made.

7. Learned Government Pleader for respondents supported the impugned order. However, on a specific query from the Bench, she fairly admitted that in the counter filed before the Writ Court, it was not averred by the State that the land in question was not at all allotted to the appellant's father. Thus, we find substance in the argument of learned Senior Counsel for the appellant that there was no occasion for the learned Single Judge to record a finding doubting the allotment of land to the father of the appellant. More so, when the stand of the Government is that original file is missing.

8. We also find substantial force in the argument of learned Senior Counsel for the appellant that if the Writ Petition was not maintainable, it was not proper to record any findings on merits. The next ground is equally attractive that the prayer of writ

petitioner was not for correction of revenue entries. A plain reading of prayer clause of writ petition shows that the writ petitioner did not ask for any such relief directing correction of revenue record. Thus, all the three reasons on which, basically, the impugned order of learned Single Judge is founded upon cannot be permitted to stand.

9. Resultantly, the impugned order is set aside. The matter is remitted back to the learned Single Judge with the request to decide the matter afresh, in accordance with law, expeditiously, preferably, within a period of sixty days. It is made clear that this Bench has not expressed any opinion on the merits of the case.

10. Accordingly, the Writ Appeal is **disposed of**. No order as to costs. Miscellaneous petitions pending, if any, shall stand closed.

JUSTICE SUJOY PAUL

DR. JUSTICE G.RADHA RANI

06.01.2025
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